

Misaryar Khan v. State of U.P. and Another

High Court of Judicature at Allahabad · Division Bench · 18 September 2023 · 2023:AHC:179425-DB · WRIT - C No. 30774 of 2023 · **Instalments under clause 6.14; connection restored on first instalment.**

HEADNOTE

A writ challenging a demand of Rs 1,30,084 was disposed without a merits inquiry once the consumer agreed to pay in instalments. On an application under clause 6.14 of the U.P. Electricity Supply Code, 2005 the licensee must fix the instalments, and on deposit of the first instalment the electricity connection shall be restored.

FACTUAL SUMMARY

Misaryar Khan filed a writ petition against a notice dated 4 August 2023 issued by the Executive Engineer, Vidyut Vitaran Khand, Bilaspur, District Rampur, demanding Rs 1,30,084. Though he had challenged that demand, he told the Division Bench that he was ready to pay the amount in instalments. Counsel for the electricity department submitted that an efficacious remedy was available for getting the instalments fixed under clause 6.14 of the U.P. Electricity Supply Code, 2005.

REUSABLE CONSTRUCTIONS

1. Where a consumer is ready to pay a demanded sum in instalments, the writ may be disposed by directing that an application under clause 6.14 of the U.P. Electricity Supply Code, 2005 be considered and the instalments fixed, without deciding the demand. ¶ 1
2. After instalments are fixed under clause 6.14 and the consumer deposits the first instalment, the electricity connection is to be restored. ¶ 1

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalments on accepted dues and restoration

HOLDING

Where the consumer, though he has challenged a demand notice, is ready to pay the demanded amount in instalments, the writ is disposed without entering into the merits by directing that an application under clause 6.14 of the U.P. Electricity Supply Code, 2005 be considered and the instalments fixed, and that the electricity connection be restored after the first instalment is deposited. ¶ 1

PRINCIPLE TAGS

clause-6.14-instalments-on-accepted-dues The consumer was ready to pay the Rs 1,30,084 demand by instalments, so the Court routed fixation of those instalments through clause 6.14 without trying the demand. ¶ 1

installment-payment-clause-6.14 The department's submission that instalments are to be fixed under clause 6.14 was accepted, with restoration to follow deposit of the first instalment. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DEMAND OF RS 1,30,084 IN THE NOTICE DATED 4 AUGUST 2023 WAS LAWFUL
The Court expressly declined to go into the merits of the demand. ¶ 1

